

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3443

By: Wilk

AS INTRODUCED

An Act relating to transportation; authorizing the modification of certain permit fees; requiring use of certain formula for calculation; amending 47 O.S. 2021, Section 14-103, as amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-103), which relates to width, height and length of vehicle and load; modifying certain fee; amending 47 O.S. 2021, Section 14-103G, as amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-103G), which relates to oversize or overweight permits; modifying certain fees; 47 O.S. 2021, Section 14-109, as amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-109), which relates to load limits; modifying certain fees; amending 47 O.S. 2021, Section 14-116, as amended by Section 9, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-116), which relates to permit fees; modifying certain fees; amending 47 O.S. 2021, Section 14-118, as amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-118), which relates to motor carriers; modifying certain fees; amending 47 O.S. 2021, Section 14-120, as amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-120), which relates to movement of certain manufactured items; modifying certain fees; amending 47 O.S. 2021, Section 14-121, as amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-121), which relates to special combination vehicles; modifying certain fees; providing for codification; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 14-127 of Title 47, unless there
4 is created a duplication in numbering, reads as follows:

5 The Oklahoma Department of Transportation is authorized to
6 increase any oversize or overweight related permit fees found in its
7 administrative rules including, but not limited to:

- 8 1. Special Overheight Trailer Permit for Limited Travel Thirty-
9 day (30-day) Permit;
10 2. Longer Combination Annual Permit; and
11 3. Special Overheight Trailer Permit for Limited Travel Annual
12 Permit.

13 The Department shall use a formula for calculating the changes
14 to the fees using a cost of living adjustment through the year 2024.

15 SECTION 2. AMENDATORY 47 O.S. 2021, Section 14-103, as
16 amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
17 Section 14-103), is amended to read as follows:

18 Section 14-103. A. Except as otherwise provided for by this
19 chapter, no vehicle, with or without load, shall have a total
20 outside width in excess of one hundred two (102) inches excluding:

- 21 1. Tire bulge;
22 2. Approved safety devices;
23 3. A retracted awning with a width of eight (8) inches or less
24 or other appurtenance of four (4) inches or less which is attached

1 to the side of a recreational vehicle, as defined in Section 1102 of
2 this title; and

3 4. Pins used as a safety precaution or as a load-assisting
4 device if the pins do not extend the overall width of the vehicle
5 beyond nine (9) feet. The State of Oklahoma hereby declares it has
6 determined, in accordance with 23 C.F.R., Section 658.15, that such
7 pins are necessary for the safe and efficient operation of motor
8 vehicles.

9 The provisions of this subsection shall not apply to any person
10 engaged in the hauling of round baled hay with a total outside width
11 of eleven (11) feet or less when the hay is owned by such person and
12 is being hauled for any purpose other than resale. The provisions
13 of this subsection shall also not apply to any county official or
14 employee engaged in the hauling or pulling of a trailer or equipment
15 owned by the county on the county roads of such county.

16 B. Except as otherwise provided for by this chapter:

17 1. No vehicle, with or without load, shall exceed a height of
18 thirteen and one-half (13 1/2) feet on any county road, or fourteen
19 (14) feet on any turnpike, interstate, U.S. or state highway, unless
20 a greater height is authorized by a special permit issued by the
21 Executive Director of the Department of Transportation or an
22 authorized representative of the Department of Transportation
23 specifying the highways to be used, consistent with public
24 convenience and safety. The prohibitions on movement as prescribed

1 in subsection F of Section 14-101 of this title and paragraph 1 of
2 subsection G of Section 14-101 of this title shall not apply to
3 vehicles operated pursuant to such permits;

4 2. An official state bridge vertical clearance map providing
5 clearance heights as posted for bridges on the interstate, U.S. and
6 state highway systems shall be available on the Oklahoma Department
7 of Transportation website; and

8 3. Operators and owners of vehicles which exceed or have loads
9 which exceed thirteen and one-half (13 1/2) feet shall be held
10 liable for all damages to any part of structures spanning the
11 highway or damages suffered by other affected parties caused by the
12 vehicle or load exceeding the posted height.

13 C. Except as otherwise provided for by this chapter:

14 1. No single truck, with or without load, shall have an overall
15 length, inclusive of front and rear bumpers, in excess of forty-five
16 (45) feet;

17 2. No single bus, with or without load, shall have an overall
18 length, inclusive of front and rear bumpers, in excess of forty-five
19 (45) feet;

20 3. a. On the National Network of Highways which includes the
21 National System of Interstate and Defense Highways and
22 four-lane divided Federal Aid Primary System Highways,
23 no semitrailer operating in a truck-
24 tractor/semitrailer combination shall have a length

greater than fifty-three (53) feet, except as provided in subsection C of Section 14-118 of this title which shall apply to semitrailers exceeding fifty-three (53) feet but not exceeding fifty-nine (59) feet six (6) inches. On the National System of Interstate and Defense Highways and four-lane divided Federal Aid Primary System Highways, no semitrailer or trailer operating in a truck-tractor/semitrailer and trailer combination shall have a length greater than fifty-three (53) feet;

- b. On roads and highways not a part of the National System of Interstate and Defense Highways or four-lane divided Federal Aid Primary System Highways, no semitrailer operating in a truck-tractor/semitrailer combination shall have a length greater than fifty-three (53) feet and no semitrailer or trailer operating in a truck-tractor/semitrailer and trailer combination shall have a length greater than twenty-nine (29) feet. Except as provided for in subsection D of Section 14-118 of this title, no other combination of vehicles shall have an overall length, inclusive of front and rear bumpers, in excess of seventy (70) feet on all roads and highways. For the purposes of this paragraph, oil field rig-up trucks

1 shall be considered to be truck-tractors, when towing
2 a trailer or semitrailer;

3 c. On the National Network of Highways the overall length
4 limitation of a towaway trailer transporter
5 combination may exceed length restrictions up to
6 eighty-two (82) feet;

7 d. As used in this section:

8 (1) The term "trailer transporter towing unit" shall
9 mean a power unit that is not used to carry
10 property when operating in a towaway trailer
11 transporter combination, and

12 (2) The term "towaway trailer transporter
13 combination" shall mean a combination of vehicles
14 consisting of a trailer transporter towing unit
15 and two (2) trailers or semitrailers with a total
16 weight that does not exceed twenty-six thousand
17 (26,000) pounds; and in which the trailers or
18 semitrailers carry no property and constitute
19 inventory property of a manufacturer, distributor
20 or dealer of such trailers or semitrailers;

21 4. No combination of vehicles shall consist of more than two
22 units, except:
23
24

- 1 a. one truck and semitrailer or truck-tractor/semitrailer
2 combination may tow one complete trailer or
3 semitrailer, or
- 4 b. vans, suburbans, blazers or other similar types of
5 vehicles and self-propelled recreational vehicles with
6 a three-quarter (3/4) ton or more rated capacity may
7 tow a semitrailer and one complete trailer or
8 semitrailer for recreational purposes only, provided
9 the overall length, inclusive of the front and rear
10 bumpers, does not exceed sixty-five (65) feet;

11 5. Poles and gas lines used to maintain public utility
12 services, not to include new construction, may be moved during
13 daylight hours, and during nighttime hours only in an emergency,
14 subject to traffic and road restrictions promulgated by the
15 Executive Director of the Department of Transportation, when the
16 overall length does not exceed eighty (80) feet. When this length
17 is exceeded, these loads are subject to the requirements of Section
18 14-118 of this title;

19 6. For the purposes of paragraphs 1, 3, and 4 of this
20 subsection, the length of unitized equipment, which is defined to be
21 equipment so constructed and attached to a rubber-tired vehicle that
22 the vehicle and load become a unit and are for all practical
23 purposes inseparable, shall be the length of the vehicle itself, and
24 shall not include any protrusion of the equipment load so

1 constructed or attached. The equipment shall not protrude for a
2 distance greater than two-thirds (2/3) of the wheel base of the
3 vehicle, shall not impair the driver's vision, and if less than
4 seven (7) feet above the roadway, shall be safely marked, flagged or
5 illuminated. Any such protruding structure shall be securely held
6 in place to prevent dropping or swaying. Unitized equipment shall
7 carry such safety equipment as shall be determined to be necessary
8 for the safety, health, and welfare of the driving public by the
9 Executive Director of the Department of Transportation;

10 7. For the purposes of paragraphs 1, 3, and 4 of this
11 subsection, a truck-tractor, when being towed by another vehicle
12 with the wheels of its steering axle raised off the roadway, shall
13 be considered to be a semitrailer as defined in Section 1-162 of
14 this title;

15 8. The provisions of paragraphs 1 and 3 of this subsection
16 shall not apply to any contractor or subcontractor, or agents or
17 employees of any contractor or subcontractor, while engaged in
18 transporting material to the site of a project being constructed by,
19 for, or on behalf of this state or any city, town, county, or
20 subdivision of this state; and

21 9. Special mobilized machinery, as defined in Section 1102 of
22 this title, which exceeds the size provisions of this section shall
23 only use the highways of this state by special permit issued by the
24 Executive Director of the Department of Transportation or an

1 authorized representative of the Executive Director of the
2 Department of Transportation. Such special permit shall be:

3 a. a single-trip permit issued under the provisions of
4 Section 14-116 of this title, or

5 b. a special annual oversize permit issued for one (1)
6 calendar year period upon payment of a fee of ~~Ten~~
7 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) plus any
8 amount as provided by subsection H of Section 14-118
9 of this title.

10 SECTION 3. AMENDATORY 47 O.S. 2021, Section 14-103G, as
11 amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
12 Section 14-103G), is amended to read as follows:

13 Section 14-103G. A. 1. The Department of Transportation may
14 issue an annual vehicle permit under the provisions of this
15 subsection to a specific vehicle, for the movement of oversize or
16 overweight loads that cannot reasonably be dismantled. Unless
17 otherwise provided by law, permits issued under this subsection
18 shall be subject to the conditions described in paragraphs 2 through
19 8 of this subsection.

20 2. Oversize or overweight loads operating under an annual
21 vehicle permit shall not exceed:

- 22 a. twelve (12) feet in width,
23 b. fourteen (14) feet in height,
24 c. one hundred ten (110) feet in length, or

d. one hundred twenty thousand (120,000) pounds gross weight.

3. Oversize or overweight loads operating under an annual vehicle permit under this subsection shall not transport a load that has more than a twenty-five-foot front overhang, or more than a thirty-foot rear overhang.

4. The fee for an annual vehicle permit shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five Thousand Four Hundred Forty Dollars (\$5,440.00) and shall be nonrefundable.

5. The annual vehicle permit shall be issued for one (1) calendar year period and shall commence upon the date specified on the permit.

6. An annual vehicle permit issued pursuant to this subsection shall be nontransferable between permittees.

7. The permitted vehicle or vehicle combination shall be registered in accordance with the provisions of Chapter 14 of this title for maximum weight.

8. An annual vehicle permit issued pursuant to this subsection may be transferred from one vehicle to another vehicle in the fleet of the permittee provided:

a. the permitted vehicle is destroyed or otherwise becomes permanently inoperable to the extent that the vehicle will no longer be utilized, and the permittee presents proof to the Department of Transportation

1 that the negotiable certificate of title or other
2 qualifying documentation has been surrendered to the
3 Department of Transportation, or

4 b. the certificate of title to the permitted vehicle is
5 transferred to someone other than the permittee, and
6 the permittee presents proof to the Department of
7 Transportation that the negotiable certificate of
8 title or other qualifying documentation has been
9 transferred from the permittee.

10 9. A permit issued for loads specific to turbine blades, used
11 for the purpose of wind generation, may exceed a length of one
12 hundred ten (110) feet.

13 B. 1. The Department of Transportation may issue an annual
14 vehicle permit under this subsection to a specific motor carrier,
15 for the movement of oversize or overweight loads that cannot
16 reasonably be dismantled. An annual vehicle permit issued under
17 this subsection may be transferred from one vehicle to another
18 vehicle in the fleet of the permittee provided:

19 a. that no more than one vehicle is operating at a time,
20 and

21 b. the original certified permit is carried in the
22 vehicle that is being operated under the terms of the
23 permit.

1 2. An annual vehicle permit issued under this subsection shall
2 be sent to the permittee via first-class, registered mail, or at the
3 request and expense of the permittee via overnight delivery service.
4 The annual vehicle permit shall not be duplicated. The annual
5 vehicle permit shall be replaced only if:

6 a. the permittee did not receive the original permit
7 within seven (7) business days after the date of
8 issuance,

9 b. a request for replacement is submitted to the
10 Department of Transportation within ten (10) business
11 days after the original date of issuance of the
12 permit, and

13 c. the request for replacement is accompanied by a
14 notarized statement signed by a principal or officer
15 of the permittee acknowledging that the permittee
16 understands the permit may not be duplicated and that
17 if the original permit is located, the permittee shall
18 return either the original or replacement permit to
19 the Department of Transportation.

20 3. A request for replacement of an annual vehicle permit issued
21 pursuant to the provisions of this subsection shall be denied if the
22 Department of Transportation can verify that the permittee received
23 the original annual vehicle permit.
24

1 4. Lost, misplaced, damaged, destroyed or otherwise unusable
2 annual vehicle permits shall not be replaced. A new permit shall be
3 required and shall be issued by the Department of Transportation.

4 C. 1. The Department of Transportation may issue an annual
5 fleet permit under this subsection to an electric utility, regulated
6 by the Corporation Commission or a rural electric cooperative solely
7 for the movement of poles. An annual fleet permit issued under this
8 subsection may be used by any vehicle in the fleet of the permittee
9 provided that a certified copy of the permit is carried in each
10 vehicle that is being operated under the terms of the permit.

11 2. Oversize loads operating under an annual permit issued
12 pursuant to this subsection shall not exceed:

- 13 a. twelve (12) feet in width,
- 14 b. fourteen (14) feet in height, or
- 15 c. fifty-five (55) feet in length.

16 3. The annual fee for an annual fleet permit issued pursuant to
17 this subsection shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five
18 Thousand Two Hundred Seventy Dollars (\$5,270.00) and shall be
19 nonrefundable.

20 4. The annual fleet permit shall be issued for a one-calendar-
21 year period and shall commence upon the date specified on the
22 permit.

23 5. The annual fleet permit issued under this subsection shall
24 be sent to the permittee via first class, registered mail, or at the

1 request and expense of the permittee via overnight delivery service.

2 The annual permit shall be replaced only if:

3 a. the permittee did not receive the original permit
4 within seven (7) business days after the date of the
5 issuance,

6 b. a request for replacement is submitted to the
7 Department of Transportation within ten (10) business
8 days after the original date of issuance of the
9 permit, and

10 c. the request for replacement is accompanied by a
11 notarized statement signed by an authorized person of
12 the permittee acknowledging that if the original
13 permit is located, the permittee shall either return
14 the original or replacement permit to the Department
15 of Transportation.

16 6. A request for replacement of an annual permit issued under
17 the provisions of this subsection shall be denied if the Department
18 of Transportation can verify the permittee received the original
19 annual permit.

20 7. Lost, misplaced, damaged, destroyed or otherwise unusable
21 annual permits shall not be replaced. A new permit shall be
22 required and shall be issued by the Department of Transportation.

23 8. For the purposes of paragraph 5 of subsection C of Section
24 14-103 of this title, the term "emergency" means any permitted

1 movement of poles pursuant to the provisions of this subsection that
2 is not for new construction of electric distribution facilities.

3 D. 1. The Department of Transportation shall issue an annual
4 vehicle permit under this subsection to a transportation company or
5 manufacturer of portable buildings solely for the movement of
6 oversize portable buildings for a specific manufacturer of portable
7 buildings. An annual vehicle permit issued under this subsection
8 may not be transferred from one vehicle to another vehicle in the
9 fleet. The name of the manufacturer shall be on the permit and on
10 any portable building being moved. The original certified permit
11 shall be carried in the vehicle that is being operated under the
12 terms of the permit.

13 2. Oversize loads operating under an annual vehicle permit
14 issued pursuant to this subsection shall not exceed:

- 15 a. twelve (12) feet in width at the wall with no more
16 than a three-inch-eave overhang, or
- 17 b. fourteen (14) feet in height.

18 3. The total gross weight of oversize loads operating under an
19 annual vehicle permit issued pursuant to this subsection shall not
20 exceed forty-five thousand (45,000) pounds.

21 4. The tow vehicle shall be limited to two axles, and the
22 vehicle identification number of the vehicle shall be on the permit.

1 5. The fee for an annual vehicle permit issued pursuant to this
2 subsection shall be ~~Five Hundred Dollars (\$500.00)~~ Six Hundred Sixty
3 Dollars (\$660.00) and shall be nonrefundable.

4 6. An annual vehicle permit issued under this subsection shall
5 be sent to the permittee via first-class, registered mail, or at the
6 request and expense of the permittee via overnight delivery service.
7 The annual vehicle permit shall not be duplicated. The annual
8 vehicle permit shall be replaced only if:

- 9 a. the permittee did not receive the original permit
10 within seven (7) business days after the date of
11 issuance,
12 b. a request for replacement is submitted to the
13 Department of Transportation within ten (10) business
14 days after the original date of issuance of the
15 permit, and
16 c. the request for replacement is accompanied by a
17 notarized statement signed by a principal or officer
18 of the permittee acknowledging that the permittee
19 understands the permit may not be duplicated and that
20 if the original permit is located, the permittee shall
21 return either the original or replacement permit to
22 the Department of Transportation.

23 7. A request for replacement of an annual vehicle permit issued
24 pursuant to the provisions of this subsection shall be denied if the

1 Department of Transportation can verify that the permittee received
2 the original annual vehicle permit.

3 8. A lost, misplaced, damaged, destroyed, or otherwise unusable
4 annual vehicle permit shall be replaced for a fee of ~~Twenty-five~~
5 ~~Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00).

6 SECTION 4. AMENDATORY 47 O.S. 2021, Section 14-109, as
7 amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
8 Section 14-109), is amended to read as follows:

9 Section 14-109. A. On any road or highway:

10 1. No single axle weight shall exceed twenty thousand (20,000)
11 pounds; and

12 2. The total gross weight in pounds imposed thereon by a
13 vehicle or combination of vehicles shall not exceed the value
14 calculated in accordance with the Federal Bridge formula imposed by
15 23 U.S.C., Section 127.

16 B. Except as to gross limits, the formula of this section shall
17 not apply to a truck-tractor and dump semitrailer when used as a
18 combination unit. In no event shall the maximum load in pounds
19 carried by any set of tandem axles exceed thirty-four thousand
20 (34,000) pounds. Any vehicle operating with split tandem axles or
21 tri-axles shall adhere to the formula.

22 C. Except for loads moving under special permits as provided in
23 this title, no department or agency of this state or any county,
24 city, or public entity thereof shall pay for any material that

1 exceeds the legal weight limits moving in interstate or intrastate
2 commerce in excess of the legal load limits of this state.

3 D. 1. An annual special overload permit may be purchased for
4 vehicles transporting roll-off recycle metals, rock, sand, gravel,
5 coal, flour, timber, pulpwood, and chips in their natural state, oil
6 field fluids, oil field equipment or equipment used in oil and gas
7 well drilling or exploration, and vehicles transporting grain,
8 fertilizer, cottonseed, cotton, livestock, peanuts, canola,
9 sunflowers, soybeans, feed, any other raw agricultural products, and
10 any other unprocessed agricultural products, if the following
11 conditions are met:

12 a. the vehicles are registered for the maximum allowable
13 rate,

14 b. the vehicles do not exceed five percent (5%) of the
15 gross limits set forth in subsection A of this
16 section,

17 c. the vehicles do not exceed eight percent (8%) of the
18 axle limits set forth in subsection A of this section,

19 d. no component of the vehicles exceeds the
20 manufacturer's component weight rating as shown on the
21 vehicle certification label or tag, and

22 e. the vehicles operating pursuant to the provisions of
23 this paragraph will not be allowed to operate on the
24 National System of Interstate and Defense Highways.

1 2. Vehicles operating pursuant to this section must register
2 for the maximum allowable rate and additionally shall purchase a
3 nontransferable annual special overload permit from the Department
4 of Transportation for a fee of ~~Three Hundred Fifty Dollars (\$350.00)~~
5 Four Hundred Sixty Dollars (\$460.00). All monies collected shall be
6 deposited to the credit of the Highway Construction and Maintenance
7 Fund.

8 E. 1. Oversize or overweight vehicles used for specialized
9 transportation if the maximum weight does not exceed twenty-three
10 thousand (23,000) pounds on any single axle and:

11 a. is a dual lane trailer with dual lane axles and the
12 width of the transport vehicle or trailer exceeds
13 twelve (12) feet in width, or

14 b. the overall gross vehicle weight of a single trailer
15 meets or exceeds three hundred thousand (300,000)
16 pounds, originates or terminates at the Tulsa Port of
17 Catoosa, and the trip is confined within a thirty-mile
18 radius of the Port.

19 2. Permit fees for oversize or overweight vehicles used for
20 specialized transportation shall be in accordance with subsection A
21 of Section 14-116 of this title.

22 3. Vehicles operating pursuant to the provisions of this
23 paragraph will not be allowed to operate on the National System of
24 Interstate and Defense Highways.

1 F. Exceptions to this section will be:

2 1. Utility or refuse collection vehicles used by counties,
3 cities, or towns or by private companies contracted by counties,
4 cities, or towns if the following conditions are met:

5 a. calculation of weight for a utility or refuse
6 collection vehicle shall be "Gross Vehicle Weight".
7 The "Gross Vehicle Weight" of a utility or refuse
8 collection vehicle may not exceed the otherwise
9 applicable weight by more than fifteen percent (15%).

10 The weight on individual axles must not exceed the
11 manufacturer's component rating which includes axle,
12 suspension, wheels, rims, brakes, and tires as shown
13 on the vehicle certification label or tag, and

14 b. utility or refuse collection vehicles operated under
15 these exceptions will not be allowed to operate on
16 interstate highways;

17 2. A combination of a wrecker or tow vehicle and another
18 vehicle or vehicle combination if:

19 a. the service provided by the wrecker or tow vehicle is
20 needed to remove disabled, abandoned, or accident-
21 damaged vehicles, and

22 b. the wrecker or tow vehicle is towing the other vehicle
23 or vehicle combination directly to the nearest
24

1 appropriate place of repair, terminal, or vehicle
2 storage facility;

3 3. A vehicle operating pursuant to the provisions of paragraph
4 2 of this subsection shall not be allowed to operate on the National
5 System of Interstate and Defense Highways unless it is a covered
6 heavy-duty tow and recovery vehicle that:

7 a. is transporting a disabled vehicle from the place
8 where the vehicle became disabled to the nearest
9 appropriate repair facility, and

10 b. has a gross vehicle weight that is equal to or exceeds
11 the gross vehicle weight of the disabled vehicle being
12 transported; and

13 4. On the interstate highway system a vehicle designed to be
14 used under emergency conditions to transport personnel and equipment
15 and to support the suppression of fires and mitigation of other
16 hazardous situations with a vehicle weight limit up to a maximum
17 gross vehicle weight of eighty-six thousand (86,000) pounds with
18 less than:

19 a. twenty-four thousand (24,000) pounds on a single
20 steering axle,

21 b. thirty-three thousand five hundred (33,500) pounds on
22 a single drive axle,

23 c. sixty-two thousand (62,000) pounds on a tandem axle,
24 or

d. fifty-two thousand (52,000) pounds on a tandem rear drive steer axle.

G. 1. Any vehicle utilizing an auxiliary power or idle reduction technology unit in order to promote reduction of fuel use and emissions because of engine idling shall be allowed an additional four hundred (400) pounds total to the total gross weight limits set by this section.

2. To be eligible for the exception provided in this subsection, the operator of the vehicle must obtain written proof or certification of the weight of the auxiliary power or idle reduction technology unit and be able to demonstrate or certify that the idle reduction technology is fully functional.

3. Written proof or certification of the weight of the auxiliary power or idle reduction technology unit must be available to law enforcement officers if the vehicle is found in violation of applicable weight laws. The additional weight allowed cannot exceed four hundred (400) pounds or the actual proven or certified weight of the unit, whichever is less.

H. On the Interstate Highway System, a vehicle carrying fluid milk products shall be considered a load that cannot be easily dismantled or divided, or "nondivisible".

I. Utility, refuse collection vehicles or a combination of a wrecker or tow vehicle as described in paragraphs 1 and 2 of subsection F of this section operating under exceptions shall

1 purchase an annual special overload permit from the Department of
2 Transportation for ~~One Hundred Dollars (\$100.00)~~ One Hundred Thirty
3 Dollars (\$130.00). All monies collected shall be deposited to the
4 credit of the Highway Construction and Maintenance Fund.

5 SECTION 5. AMENDATORY 47 O.S. 2021, Section 14-116, as
6 amended by Section 9, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
7 Section 14-116), is amended to read as follows:

8 Section 14-116. A. The Executive Director of the Department of
9 Transportation shall charge a minimum permit fee of ~~Forty Dollars~~
10 ~~(\$40.00)~~ Fifty Five Dollars (\$55.00) for any permit issued pursuant
11 to the provisions of Section 14-101 et seq. of this title. In
12 addition to the permit fee, the Executive Director of the Department
13 of Transportation shall charge a fee of ~~Ten Dollars (\$10.00)~~ Fifteen
14 Dollars (\$15.00) for each thousand pounds in excess of the legal
15 load limit. The Executive Director of the Department of
16 Transportation shall establish any necessary rules for collecting
17 the fees.

18 B. The Department of Transportation is authorized to establish
19 an escrow account system for the payment of permit fees. Authorized
20 motor carriers meeting established credit requirements may
21 participate in the escrow account system for permits purchased from
22 all size and weight permit offices in this state. Carriers not
23 choosing to participate in the escrow account system shall be
24 required to make payment of the required fee or fees upon purchase

1 of each permit as required by law. All monies collected through the
2 escrow account system shall be deposited to a special account of the
3 Department of Transportation and placed in the custody of the State
4 Treasurer. Proceeds from permits purchased using the escrow account
5 system shall be distributed as provided for in subsection H of this
6 section. However, fees collected through such accounts for the
7 electronic transmission, transfer or delivery of permits, as
8 provided for in Section 14-118 of this title, shall be credited to
9 the Weigh Station Improvement Revolving Fund established pursuant to
10 Section 1167 of this title.

11 C. 1. Application for permits shall be made a reasonable time
12 in advance of the expected time of movement of such vehicles. For
13 emergencies affecting the health or safety of persons or a
14 community, permits may be issued for immediate movement.

15 2. Size and weight permit offices in all districts where
16 applicable shall issue permits to authorize carriers by telephone
17 during weekdays.

18 D. No overweight permit shall be valid until all license taxes
19 due the State of Oklahoma have been paid.

20 E. No permit violation shall be deemed to have occurred when an
21 oversize or overweight movement is made pursuant to a permit whose
22 stated weight or size exceeds the actual load.

23 F. Any permit issued for a truck or truck-tractor operating in
24 combination with a trailer or a semitrailer shall contain only the

1 license plate number for the truck or truck-tractor if the permittee
2 provides to the Department of Transportation a list containing the
3 license plate number, and such other information as the Department
4 of Transportation may prescribe by rule, for each trailer or
5 semitrailer which may be used for movement with the permit. When
6 the permittee provides the list described in this subsection, the
7 license plate number for any trailer or semitrailer to be moved with
8 the permit shall not be included on the permit; provided, a trailer
9 or semitrailer which is not on the list shall not be authorized to
10 be used for movement with the permit. It shall be the
11 responsibility of the permittee to ensure the list provided to the
12 Department of Transportation is maintained and updated with any
13 fleet changes. The Department of Transportation shall adopt any
14 rules deemed necessary to administer the provisions of this
15 subsection.

16 G. The first deliverer of motor vehicles designated truck
17 carriers or well service carriers manufactured in Oklahoma shall not
18 be required to purchase an overweight permit when being delivered to
19 the first purchaser.

20 H. Except as provided in Section 14-122 of this title, the
21 first One Million Two Hundred Sixteen Thousand Dollars
22 (\$1,216,000.00) of proceeds from both the permit fees and the
23 overweight permit fees imposed pursuant to subsection A of this
24 section collected monthly shall be apportioned as provided in

1 Section 1104 of this title. For the fiscal year beginning July 1,
2 2022, and all subsequent years, the next Two Million Five Hundred
3 Thousand Dollars (\$2,500,000.00) of proceeds from both the permit
4 fees and the overweight permit fees imposed pursuant to subsection A
5 of this section collected monthly shall be remitted to the
6 Department of Public Safety for the purpose of staffing the port of
7 entry weigh stations with Department of Public Safety port of entry
8 officers whose powers and duties shall be specified by the
9 Department of Public Safety through the promulgation of rules. For
10 the fiscal year beginning July 1, 2017, and all subsequent years,
11 all proceeds collected from both the permit fees and the overweight
12 permit fees imposed pursuant to subsection A of this section in
13 excess of Three Million Seven Hundred Sixteen Thousand Dollars
14 (\$3,716,000.00) shall be deposited in the Weigh Station Improvement
15 Revolving Fund as provided in Section 1167 of this title for the
16 purpose set forth in that section and may be used for motor carrier
17 permitting systems and motor carrier safety and enforcement.

18 SECTION 6. AMENDATORY 47 O.S. 2021, Section 14-118, as
19 amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
20 Section 14-118), is amended to read as follows:

21 Section 14-118. A. 1. Pursuant to such rules as may be
22 prescribed by Oklahoma agencies of jurisdiction, Oklahoma motor
23 carriers may engage in any activity in which carriers subject to the
24 jurisdiction of the federal government may be authorized by federal

1 legislation to engage. Provided further, the Transportation
2 Commission shall formulate for the State Trunk Highway System,
3 including the National System of Interstate and Defense Highways,
4 and for all other highways or portions thereof, rules governing the
5 movement of vehicles or loads which exceed the size or weight
6 limitations specified by the provisions of this chapter.

7 2. Such rules shall be the basis for the development of a
8 system by the Executive Director of the Department of Transportation
9 for the issuance of permits for the movement of oversize or
10 overweight vehicles or loads. Such system shall include, but not be
11 limited to, provisions for duration, seasonal factors, hours of the
12 day or days when valid, special requirements as to flags, flagmen
13 and warning or safety devices and other such items as may be
14 consistent with the intent of this section. The permit system shall
15 include provisions for the collection of permit fees as well as for
16 the issuance of the permits by telephone, electronic transfer or
17 such other methods of issuance as may be deemed feasible.

18 3. The Department of Transportation is authorized to charge a
19 fee of ~~Two Dollars (\$2.00)~~ Three Dollars (\$3.00) for each permit
20 requested to be issued by facsimile machine or by any other means of
21 electronic transmission, transfer or delivery. The fee shall be in
22 addition to any other fee or fees assessed for the permit. The fee
23 shall be deposited in the State Treasury to the credit of the
24 Department of Transportation and the monies shall be expended by the

1 Department of Transportation solely for the purposes provided for in
2 this chapter.

3 4. It is the purpose of this section to permit the movement of
4 necessary overweight and oversize vehicles or loads consistent with
5 the following obligations:

6 a. protection of the motoring public from potential
7 traffic hazards,

8 b. protection of highway surfaces, structures, and
9 private property, and

10 c. provision for normal flow of traffic with a minimum of
11 interference.

12 B. The Transportation Commission shall prepare and publish a
13 map of this state showing by appropriate symbols the various highway
14 structures and bridges in terms of maximum size and weight
15 restrictions. This map shall be titled "Oklahoma Load Limit Map"
16 and shall be revised periodically to maintain a reasonably current
17 status and in no event shall a period of two (2) years lapse between
18 revisions and publication of the printed version of the Oklahoma
19 Load Limit Map. This map shall also be made available by the
20 Department of Transportation on the Internet, and in no event shall
21 a period of six (6) months lapse between revisions of the
22 information provided on the Internet. Provided, further, the
23 Secretary of the Department of Transportation shall prepare and
24 publish a map of this state showing the advantages of this state as

1 a marketing, warehousing and distribution network center for motor
2 transportation sensitive industries.

3 C. The Executive Director of the Department of Transportation,
4 or an authorized representative, shall have the authority, within
5 the limitations formulated under provisions of this chapter, to
6 issue, withhold or revoke special permits for the operation of
7 vehicles or combinations of vehicles or loads which exceed the size
8 or weight limitations of this chapter. Every such permit shall be
9 carried in the vehicle or combination of vehicles to which it refers
10 and shall be open to inspection by any law enforcement officer or
11 authorized agent of any authority granting such permit, and no
12 person shall violate any of the terms or conditions of such special
13 permit.

14 D. It shall be permissible in the transportation of empty
15 trucks on any road or highway to tow by use of saddlemounts, i.e.,
16 mounting the front wheels of one vehicle on the bed of another
17 leaving the rear wheels only of such towed vehicle in contact with
18 the roadway. One vehicle may be fullmounted on the towing or towed
19 vehicles engaged in any driveaway or towaway operation. No more
20 than three saddlemounts may be permitted in such combinations. The
21 towed vehicles shall be securely fastened and operated under the
22 applicable safety requirements of the United States Department of
23 Transportation and such combinations shall not exceed an overall
24 length of seventy-five (75) feet. Provided, a driveaway saddlemount

1 with fullmount vehicle transporter combination may reach an overall
2 length of ninety-seven (97) feet on the National Network of
3 Highways.

4 E. The Executive Director of the Department of Transportation,
5 upon application of any person engaged in the transportation of
6 forest products in the raw state, which is defined to be tree-length
7 logs moving from the forest directly to the mill, or upon
8 application of any person engaged in the hauling for hire or for
9 resale of round baled hay with a total outside width of eleven (11)
10 feet or less, shall issue an annual permit, upon payment of a fee of
11 ~~Twenty-five Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00) each year,
12 authorizing the operation by such persons of such motor vehicle load
13 lengths and widths upon the highways of this state except on the
14 National System of Interstate and Defense Highways. Provided,
15 however, the restriction on use of the National System of Interstate
16 and Defense Highways shall not be applicable to persons engaged in
17 the hauling of round baled hay with a total outside width of eleven
18 (11) feet or less.

19 F. The Executive Director of the Department of Transportation,
20 upon application of any person engaged in the transportation of
21 overwidth or overheight equipment used in soil conservation work
22 with a total outside width of twelve (12) feet or less, shall issue
23 an annual permit, upon payment of a fee of ~~Twenty-five Dollars~~
24 ~~(\$25.00)~~ Thirty-five Dollars (\$35.00) each year, authorizing the

1 operation by such persons of such motor vehicle load lengths and
2 widths upon the highways of this state except on the National System
3 of Interstate and Defense Highways.

4 G. Farm equipment including, but not limited to, implements of
5 husbandry as defined in Section 1-125 of this title shall be
6 exempted from the requirement for special permits due to size. Such
7 equipment may move on any highway, except those highways which are
8 part of the National System of Interstate and Defense Highways,
9 during the hours of darkness and shall be subject to the
10 requirements as provided in Section 12-215 of this title. In
11 addition to those requirements, tractors pulling machinery over
12 thirteen (13) feet wide must have two amber flashing warning lamps
13 symmetrically mounted, laterally and widely spaced as practicable,
14 visible from both front and rear, mounted at least thirty-nine (39)
15 inches high.

16 H. Any rubber-tired road construction vehicle including rubber-
17 tired truck cranes and special mobilized machinery either self-
18 propelled or drawn carrying no load other than component parts
19 safely secured to the machinery and its own weight, but which is
20 overweight by any provisions of this chapter, shall be authorized to
21 move on the highways of this state. Movement of such vehicles shall
22 be authorized on the National System of Interstate and Defense
23 Highways only by special permit secured from the Executive Director
24 of the Department of Transportation or an authorized representative

1 upon determination that the objectives of this section will be
2 served by such a permit and that federal weight restrictions will
3 not be violated. The special permit shall be:

4 1. A single-trip permit issued under the provisions of this
5 section and Section 14-116 of this title; or

6 2. A special annual overweight permit which shall be issued for
7 one calendar year period upon payment of a fee of ~~Sixty Dollars~~
8 ~~(\$60.00)~~ Eighty-five Dollars (\$85.00).

9 The weight of any such vehicle shall not exceed six hundred
10 fifty (650) pounds multiplied by the nominal width of the tire. The
11 vehicle shall be required to carry the safety equipment adjudged
12 necessary for the health and welfare of the driving public. If any
13 oversized vehicle does not come under the other limitations of the
14 present laws, it shall be deemed that the same shall travel only
15 between the hours of sunrise and sunset. The vehicle, being
16 overweight but of legal dimension, shall be allowed continuous
17 travel. The vehicles, except special mobilized machinery, shall be
18 exempt from the laws of this state relating to motor vehicle
19 registration, licensing or other fees or taxes in lieu of ad valorem
20 taxes.

21 I. 1. When such machinery has a width greater than eight and
22 one-half (8 1/2) feet, or a length, exclusive of load, of forty-five
23 (45) feet, or a height in excess of thirteen and one-half (13 1/2)
24 feet, then the permit may restrict movement to a fifty-mile radius

1 from an established operating base, and may designate highways to be
2 traveled, hours of travel and when flagmen may be required to
3 precede or follow the equipment.

4 2. Possession of a permit shall in no way be construed as
5 exempting such equipment from the authority of the Executive
6 Director of the Department of Transportation to restrict use of
7 particular highways, nor shall it exempt owners or operators of such
8 equipment from the responsibility for damage to highways caused by
9 movement of the equipment. Nothing in this subsection shall apply
10 to machinery used in highway construction or road material
11 production.

12 3. Upon the issuance of a special mobilized machinery driveaway
13 permit as provided in this subsection, special mobilized machinery
14 manufactured in Oklahoma shall be permitted to move upon the
15 highways of this state from the place of manufacture to the state
16 line for delivery and exclusive use outside the state, and may be
17 temporarily returned to Oklahoma for modification and repair, with
18 subsequent movement back out of the state. Special driveaway
19 permits for such movements shall be issued by the Executive Director
20 of the Department of Transportation, who may act through designated
21 agents, upon the payment of a fee in the amount of ~~Fifteen Dollars~~
22 ~~(\$15.00)~~ Twenty Dollars (\$20.00) for each movement.

23 4. The size of the special mobilized machinery shall not be
24 such as to create a safety hazard in the judgment of the Executive

1 Director of the Department of Transportation. Permits for such
2 special mobilized machinery shall specify a maximum permissible road
3 speed of sixty (60) miles per hour, designate safety equipment to be
4 carried and may exclude use of highways of the interstate system.

5 5. When such equipment has a width greater than eight and one-
6 half (8 1/2) feet, or a length exclusive of load of forty-five (45)
7 feet, or a height in excess of thirteen and one-half (13 1/2) feet,
8 the permit may designate highways to be traveled, hours of travel
9 and when flagmen may be required to precede or follow the equipment.

10 6. Possession of a special driveway permit shall in no way be
11 construed as exempting such equipment from the authority of the
12 Executive Director of the Department of Transportation to restrict
13 use of particular highways, nor shall it exempt the owners or
14 operators of such equipment from the responsibility for damage to
15 highways caused by the movement of such equipment.

16 SECTION 7. AMENDATORY 47 O.S. 2021, Section 14-120, as
17 amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
18 Section 14-120), is amended to read as follows:

19 Section 14-120. A. Manufactured items, with the exception of
20 manufactured homes as defined in Section 1102 of this title and
21 industrialized housing as described in subsection B of Section 14-
22 103A of this title, exceeding sixteen (16) feet but not exceeding
23 twenty-three (23) feet in width traveling:
24

1 1. From a point of manufacture in this state to a point of
2 delivery in this state or to a point of delivery in another state;
3 or

4 2. From a point of manufacture outside this state to a point of
5 delivery in this state or to a point of delivery in another state
6 shall be permitted, upon receipt of a special movement permit issued
7 under the provisions of subsection B of this section, to travel on
8 any state or U.S. highway in Oklahoma. Provided, however, the
9 Executive Director of the Department of Transportation is authorized
10 to allow such items in excess of twenty-three (23) feet in width to
11 travel on such highway if it is in the best interest of the state
12 and a special moving permit has been issued. Provided, further,
13 that no such load in excess of the limitations set forth in the
14 applicable United States Code shall be permitted to travel upon any
15 portion of the National System of Interstate and Defense Highways.

16 B. Every person desiring to transport manufactured items
17 pursuant to the provisions of this section shall apply to the
18 Department of Transportation for a special movement permit on an
19 application form prescribed by the Department. Upon approval of the
20 application by the Department of Transportation, a special movement
21 permit shall be issued for a fee of ~~Five Hundred Dollars (\$500.00)~~
22 Seven Hundred Fifteen Dollars (\$715.00). Except as provided in
23 Section 14-122 of this title, monies received from such special
24 movement permit fees shall be deposited in the State Treasury to the

1 credit of the General Revenue Fund. A permit issued pursuant to the
2 provisions of this subsection shall expire upon the completion of
3 one trip specified in subsection A of this section. The special
4 movement permit, and fee related thereto, shall be in addition to
5 the permit and fees required by Section 14-116 of this title.

6 C. Highway escorts shall be required for transportation of
7 items pursuant to the provisions of this section according to rules
8 and regulations prescribed by the Department of Transportation.

9 SECTION 8. AMENDATORY 47 O.S. 2021, Section 14-121, as
10 amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
11 Section 14-121), is amended to read as follows:

12 Section 14-121. A. No person shall operate a special
13 combination vehicle within this state without a special combination
14 vehicle permit for the vehicle issued by the Department of
15 Transportation. Such permit may be issued for operation upon
16 Federal Aid Interstate Highways or four-lane divided Federal Aid
17 Primary Highways and for access or egress between points of origin
18 or destination.

19 B. The Executive Director of the Department of Transportation
20 shall promulgate rules for the issuance of special combination
21 vehicle permits and shall collect an annual fee of ~~Two Hundred Forty~~
22 ~~Dollars (\$240.00)~~ Three Hundred Forty Five Dollars (\$345.00) for
23 each such permit issued. Except as provided in Section 14-122 of
24 this title, fees collected pursuant to this section shall be

1 remitted to the State Treasurer to be credited to the General
2 Revenue Fund in the State Treasury.

3 C. For the purposes of this section, a special combination
4 vehicle shall consist of a truck-tractor semitrailer combination
5 towing two complete trailers or semitrailers. No semitrailer or
6 trailer used in such a combination shall have a length greater than
7 twenty-nine (29) feet nor shall a special combination vehicle exceed
8 the weight limitations imposed by Sections 14-109 and 14-116 of this
9 title.

10 SECTION 9. This act shall become effective November 1, 2026.

11

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